

On February 24, 2026, the Parties attended a Case Management Conference where the Court reminded Defendant's counsel that Defendant needed to file an opposition to Plaintiff's Motion to Confirm. (Reply Sabourian Decl. ¶ 15; Exhibit E at 3:20-4:2.) The Court also specifically informed Defendant that filing a jurisdictional objection "is not the proper way to resolve the dispute about what the meaning of the prior judgment says." (Id.; Exhibit E at 9:6-13.) Moreover, the Court informed Defendant that the proper way to address Defendant's jurisdictional concerns was for Defendant to file a motion. (Id.)

Defendant Hasa did not file a motion to resolve the dispute about the meaning of the prior judgment, did not file a motion challenging jurisdiction, nor filed an opposition to the instant motion to confirm the arbitration award. This failure to file either motions or opposition was despite two CMC's going back five months from the day of this hearing. Defendant relies on two sentences in its jurisdictional objection requesting the right to oppose the motion on the merits.

Defendant Hasa's stance that filing an opposition would hurt its jurisdictional argument could have been avoided by filing a separate motion challenging jurisdiction and moving ex-parte to shorten time. Defendant Hasa affirmatively chose not to file a substantive opposition to Plaintiff Guerrero's motion to confirm the arbitration award and instead filed a jurisdictional objection.

Conclusion

For the reasons analyzed above, **Plaintiff Alex Guerrero's motion to confirm final arbitration award is granted.**

12. 9:00 AM CASE NUMBER: MSC21-00403

CASE NAME: RAMOS/CHOLICO VS CB ENTERPRISES, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Maria Velez Ramos and Yuliana Cholico move for final approval of their class action and PAGA settlement with defendant California Burrito #11, Inc, (CB). The Court granted preliminary approval on December 15, 2025

A. Background and Settlement Terms

The original complaint was filed March 2, 2021, raising claims under PAGA and a class action on behalf of non-exempt employees alleging that defendant violated the Labor Code in various ways, including but not limited to failure to pay meal and rest breaks, minimum wages, and overtime wages.

The settlement would create a gross settlement fund of \$240,000. The class representative payment to each plaintiff would be \$7,500. Counsel's attorney's fees would be \$80,000 (30% of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator (Phoenix) would cap its costs at \$8,000. PAGA penalties would be \$12,000, resulting in a payment of \$9,875 to the LWDA. The fund is non-reversionary. Based on the estimated class size of 2,914, the average net payment for each class member is approximately \$412.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period. The settlement contains release language covering all “all claims . . . or causes of action which were alleged or which could have been alleged based on the factual allegations in the Class Action complaint arising during the class period” (Settlement, Par. 9ee.) Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Class members cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps have been taken with respect to mail that is returned as undeliverable. Uncashed checks would be cancelled and the amounts would be would be provided to the State Controller’s Unclaimed Property Fund.

Informal discovery was undertaken prior to mediation. The matter settled after extensive arms-length negotiations, with included a mediation session with an experienced mediator.

Counsel also has provided a summary of a quantitative analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. Part of the analysis involved an investigation into the Defendant’s financial condition. Counsel estimated the maximum potential damages as \$1,018,915.98. A substantial portion of that is penalties to discharged and quitting employees (\$358,610.01), with these penalties being derivative of the other claims.

The LWDA was notified of the settlement.

Since the Court granted preliminary approval, notice was sent to all 93 class members. No objections have been received. No requests for exclusion have been received. Four notices were returned as undeliverable, with follow-up procedures resulting in new mailings to all four. No notices remain undeliverable.

Counsel now specifies their litigation costs at \$32,423.80.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair,

reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek 30% of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 763.80 hours to date, with rates ranging from \$600 to \$1150 per hour. This results in a lodestar of \$553,110, yielding a negative multiplier. The Court finds the rates sought to be reasonable.

The Court agrees that the lodestar cross check “does not override the trial court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. This case will receive a truncated analysis, as the lodestar cross-check reveals a significant downward disparity between the amount billed and the amount recovered. Even if a multiplier were not appropriate, and the rates and hours were unreasonable, the amount of attorneys’ fees sought is 14% of what was billed. In reviewing the settlement as a whole, the Court finds this reasonable.

The Court awards fees of \$80,000/

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$7,500, Plaintiffs attest that they participated

in the litigation, took the risk of liability for costs, and that their participation could hurt their chances of being hired by other employers. They estimate their time spent at 45 and 55 hours. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request is approved.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

13. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
***HEARING ON MOTION IN RE: DEFENDANT NORCAL GOOD FAITH SETTLEMENT**
FILED BY:
TENTATIVE RULING:

Defendants, NorCal Rental Group, LLC ("NorCal") as well as Peterson Holding Company, Peterson Tractor Company DBA Peterson-Cat, and Sitech Norcal, Inc (collectively, "Peterson Defendants") separately move for determination of a good faith settlement. Plaintiff Shalini Sharma, has joined in both motions. The motions are **granted**. The Court finds that the settlement was made in good faith, as discussed below.

I. Factual Background

In this construction injury case, the plaintiff, Shalini Sharma, worked as a heavy equipment operator when she was injured by a large piece of glass that fell out of the cab door of the rented grader she was operating. The grader was rented from defendant American Equipment Company, Inc. ("AMECO"), who had procured it from NorCal, who, in turn, procured it from the Peterson Defendants.

In March 2021, plaintiff filed this suit to recover for her injuries. The currently operative complaint is the Third Amended Complaint, filed on July 26, 2022. The causes of action alleged in that complaint are (1) Negligence – Products Liability; (2) Strict Liability – Products Liability; (3) Breach of Implied Warranty; and (4) Negligence. Several cross-complaints were filed, including claims for equitable indemnity. Plaintiff's employer, ARS Aleut Construction, LLC, has been dismissed from the lawsuit based on a settlement of her workers' compensation claim for \$38,000.